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September 22, 1989

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Mr. Steven L. Sanders
5HS-11
U.S. Environmental Protection Agency
Region 5
230 South Dearborn St.
Chicago, IL 60604

Dear Mr. Sanders:

We have reviewed the draft Responsiveness Summary for the Northernair/Kysor Record of Decision (ROD) and submit the following comments.

Page 1, INTRODUCTION: The first sentence is misleading. This sentence should be more explicit to reflect that several other industries within Cadillac's industrial park were included in the remedial investigation and feasibility study, not solely Northernair and Kysor. Clarify that the State of Michigan funded the RI/FS and that other facilities which are not being addressed through the Superfund program are being handled by the State of Michigan. In fact, Rexair, Inc. is currently being sued by the State of Michigan in a separate lawsuit filed September 13, 1989 in Ingham County Circuit Court.

Page 2, OVERVIEW: As presented, the Overview implies that the public had an opportunity to comment on the draft ROD. The public comments were not on the draft ROD, but on the Feasibility Study and the Proposed Plan. Please clarify.

The last statement needs to be changed. It cannot be inferred that the community in general favors the cogeneration facility, based on the comments received during the public comment period.

Page 2, BACKGROUND ON COMMUNITY INVOLVEMENT, Item 1: Clarify that MDNR placed residents on city water.

EPA Region 5 Records Ctr.



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Page 3, GENERAL COMMENTS, Item 1, U.S. EPA's Response: Revision is necessary. The cogeneration facility is not an option which has been considered as a cleanup alternative because it cannot be funded through the Superfund program nor by State monies. It must be emphasized that if the cogeneration facility is proposed, it must be demonstrated by the proponents that it will meet the established cleanup criteria (overall protectiveness; compliance with ARARs; reduction of toxicity, mobility or volume; implementability; short and long-term effectiveness; cost effectiveness; community and state acceptance) and that it will not result in natural resource damage.

Page 4, continuation of EPA's response to Mr. Bailor: As in the previous comment, the burden of proof is on the proponents of the cogeneration facility to assure that natural resource damages will not result from its operation. Delete reference to "knowingly" allowing or approving environmental degradation. Our agencies will not allow degradation of our natural resources.

Page 4, Ms. Stark's questions: Typographic error in first question, "Would contaminated soils would be remedied with cogeneration?" (Delete second "would").

The response to this question is incomplete. The cogeneration facility is not designed to address contaminated soils. Soils would require remediation via a separate and distinct technology.

Delete "knowingly" before the word "approve."

An EIS is never conducted as part of the Superfund process. The process itself is considered the functional equivalent of an EIS.

Page 4, Item 4: Error in first word - "Their" should read "There."

PRP COMMENTS:

Page 4, Comment 1: During the public comment period, parties are allowed to comment on the entire Administrative Record, including the Remedial Investigation Report. Refer to NCP, 53 Fed. Reg. 51507 & 51451 which provides that after preparation of the Proposed Plan, the public has an opportunity to comment on the supporting analysis and information in the information repository, including the RI/FS documents. Thus, EPA must respond to Kysor's comments on such documents.

Page 5, Comment 5: Specify the specific compounds whose cleanup criteria Kysor criticizes: Toluene; Tetrachloroethylene; 1,1-Dichloroethylene; and Trans-1,2-Dichloroethylene.

Page 5, Comment 3, U.S. EPA Response: The definition of a Superfund site is not static as is implied. State laws are ARARs pursuant to Section 121(d) of CERCLA, not because some of the site study concerned property which is not part of a Superfund site. Specifically, the Michigan Water Resources Commission Act ("WRCA") and Part 22 rules are ARARs because they are legally applicable to discharges into groundwater and are more stringent than federal laws and regulations. Refer to MDNR's September 15, 1989 comments on the draft ROD.

Page 5, Comment 4: In conducting risk assessments, the standard length of exposure used is 70 years. While Kysor states that this grossly overstates the actual duration of exposure, 70 years is the conservative standard applied and complies with the Superfund Public Health Evaluation Manual ("SPHEM"). The environmental factors taken into consideration did include the factors suggested by Kysor including natural recharge and dispersion, biological and chemical degradation, adsorption, and volatilization.

Page 6, Comment 9: The names used in the FS will not be changed. The designation of the well system bears a rational relationship to the name of the site.

Page 6, Comment 10, U.S. EPA's Response: Delete the first two sentences. The Superfund program can address any site where there is a release of a hazardous substance into the environment, including sites not on the NPL through the removal program. Clarify that the groundwater contamination addressed in this ROD is one indivisible plume with multiple origins, including the two Superfund sites, Northernair and Kysor.

The draft response implies that studies of the Rexair plume were beyond the statutory authority of Superfund, which is incorrect. The existence of the Rexair plume and other contaminant sources needs to be discussed in the ROD and an explanation provided as to why they were not addressed. Include a reference to the lawsuit filed against Rexair, whose plume is distinct.

Page 7, Comment 15, U.S. EPA's Response: Rewrite, specifying that the criteria used to screen all alternatives which were evaluated must also be evaluated for the cogeneration project (see Page 3 comment above).

Mr. Steven L. Sanders

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September 22, 1989

Please incorporate our comments into the Responsiveness Summary which is to be included in the Record of Decision. Do not hesitate to call if you would like to discuss these comments.

Sincerely,

ENVIRONMENTAL RESPONSE DIVISION

A handwritten signature in cursive script, reading "Dianne A. Roycraft", with a long horizontal flourish extending to the right.

Dianne A. Roycraft
Environmental Quality Analyst
616-775-9727

cc: J. Firestone
S. Chester
J. Linton